

## Case Intake & Evaluation Memorandum

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**TO:** Senior Litigation Counsel  
**FROM:** Intake Committee / Paralegal Team  
**DATE:** July 12, 2026  
**CLIENT:** Aetheris Cloud Solutions Inc. (represented by CEO Elena Vance)  
**ADVERSE:** Nexus Logistics Corp.  
**MATTER:** Breach of Contract & Software Deployment Failure

### 1. EXECUTIVE SUMMARY

This memorandum summarizes a potential high-value commercial litigation matter brought to us by Aetheris Cloud Solutions Inc. ("Aetheris"). Aetheris is a SaaS provider specializing in enterprise resource planning (ERP) automation. On October 14, 2024, Aetheris entered into a Master Software License & Service Agreement ("the Agreement") with Nexus Logistics Corp. ("Nexus").

Nexus has abruptly ceased payment, claiming material breach due to "chronic system latency and data dropouts" during Phase II deployment. Nexus is withholding a milestone payment of \$450,000 and threatening a counterclaim for operational losses. Aetheris maintains that all latency issues arose from Nexus's outdated, un-optimized infrastructure, which violated the technical prerequisites explicitly stipulated in the contract.

### 2. BACKGROUND & FACTUAL TIMELINE

- **October 14, 2024:** Contract signed. Total project value evaluated at \$1.2,000,000, split into three milestone deployments.
- **February 15, 2025:** Phase I completed successfully. Nexus signed off on functionality and paid \$400,000.
- **November 10, 2025:** Phase II implementation went live. Nexus logistics dispatch units immediately reported severe delays in route synchronization.
- **December 3, 2025:** Nexus issued a formal Notice of Non-Compliance, halting all payments and demanding a comprehensive rewrite of the API layer.

- **January – April 2026:** Independent technical audits performed by Aetheris confirmed the source code met all benchmark protocols. However, Nexus's local legacy SQL databases failed to handle simultaneous concurrent connections.

### 3. LEGAL CLAIMS & THEORIES OF RECOVERY

We anticipate pursuing a primary action for **Breach of Contract** based on Nexus's failure to perform payment obligations under Section 4.2 of the Agreement. Furthermore, we will seek **Declaratory Judgment** stating that Aetheris has fulfilled its technical milestones as defined under Exhibit B.

**Key Evidentiary Advantage:** The client has provided extensive contemporary communications, including Slack exports and email trails, showing that Nexus IT staff admitted their internal network architecture was throttling database packets.

### 4. IMMEDIATE NEXT STEPS

1. Formalize the Engagement Agreement with Elena Vance.
2. Issue a dynamic Spoliation Letter to Nexus Logistics Corp. to ensure preservation of all server logs from November 2025 to present.
3. Draft and finalize the formal Complaint for filing in the State Commercial Division.